

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
EDWARD EBERHART,

Plaintiff

SUMMONS

Index Number

Date Purchased

-against-

THE CITY OF NEW YORK
& THE NEW YORK CITY POLICE DEPARTMENT
and POLICE OFFICER SHEILA RAMOS SHIELD #
23844, PSA 5 AND POLICE OFFICER JOSHUA
FARANDA & SHIELD #31043 AND POLICE
OFFICERS JOHN/JANE DOES #1-5,
Defendants.

The basis of venue
is plaintiff's address
and location of the
incident

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To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney within twenty (20) days after service of this summons upon you, exclusive of the day of service, (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 9, 2017

Kyle B. Watters
Kyle B. Watters, P.C.
42-40 Bell Boulevard - Suite 606
Bayside, New York 11361
(212) 679-8999
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Attorney for Plaintiff

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
EDWARD EBERHART,

Plaintiff

COMPLAINT
Index Number

-against-

THE CITY OF NEW YORK
& THE NEW YORK CITY POLICE DEPARTMENT
and POLICE OFFICER SHEILA RAMOS, SHIELD #
23844, PSA 5 AND POLICE OFFICER JOSHUA FARANDA,
SHIELD # 31043 AND POLICE OFFICERS
JOHN/JANE DOES #1-5 ,

Defendants.

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Plaintiff, for his Verified Complaint, by her attorney, Kyle B. Watters, P.C.,
states and alleges the following upon information and belief:

The Parties

1. At all times hereinafter mentioned, the plaintiff, Edward Eberhart, is a resident of the County of New York, State of New York.
2. At all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK [hereinafter "THE CITY"] is a municipal corporation organized and existing under, and by virtue of, the laws of the State of New York.
3. At all times hereinafter mentioned, the defendant, THE NEW YORK CITY POLICE DEPARTMENT, maintains its principal office in the County of New York, State of New York.

4. At all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE OFFICER SHEILA RAMOS, SHIELD 23844 PSA 5, is an employee of THE NEW YORK CITY POLICE DEPARTMENT, acting in the scope of her employment.

5. At all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE OFFICER JOSHUA FARANDA, SHIELD # 31043, is an employee of THE NEW YORK CITY POLICE DEPARTMENT, acting in the scope of his employment.

6. At all times hereinafter mentioned, the defendants, NEW YORK CITY POLICE OFFICERS JOHN/JANE DOES #1-5 are employees of THE NEW YORK CITY POLICE DEPARTMENT, acting in the scope of their employment.

Conditions Precedent For The Instant Action

7. On March 8, 2017, plaintiff Edward Eberhart filed a Notice of Claim with the defendant, THE CITY, for adjustment of damages sustained by the plaintiff Edward Eberhart herein.

8. To date, THE CITY, has not taken plaintiff Edward Eberhart's deposition pursuant to Section 50-h of the General Municipal Law.

9. More than thirty (30) days has elapsed since serving the aforementioned Notice of Claim and to this date, the defendant, THE CITY, has neglected and refused to make adjustment thereon.

10. The earliest date of accrual for the causes of action being June 13, 2016, less than one year and ninety (90) days has elapsed before the commencement of this action.

The Incident

11. On or about June 13, 2016 at about 11:15 p.m. across from 71 West 112th Street in New York County defendants, including but not limited to the Police Officers identified as defendants, arrested plaintiff, Edward Eberhart.

12. Upon information and belief, defendant police officer Joshua Faranda, Shield # 31043 signed a criminal court complaint stating that he was informed by defendant Police Officer Sheila Ramos, Shield # 23844, that Officer Ramos had seen Edward Eberhart engaged in what the officer believed to be the sale of a controlled substance.

13. Plaintiff Edward Eberhart, however, engaged in no such conduct and had not committed any crimes or acted in a way that would justify the police stopping, detaining, arresting and searching him.

14. The defendants, including but not limited to the named defendants, arrested plaintiff Edward Eberhart without legal basis or probable cause.

15. The defendants, including but not limited to the named defendants handcuffed plaintiff Edward Eberhart and otherwise restrained him.

16. The defendants, including but not limited to the named defendants, stripped searched plaintiff Edward Eberhart.
17. Defendants, including but not limited to the named defendants, held plaintiff Edward Eberhart in custody and otherwise restrained him for a period of time.
18. Defendants, including but not limited to the named defendants, caused criminal charges to be brought against plaintiff Edward Eberhart.
19. Plaintiff Edward Eberhart had to appear in court numerous times in the criminal case initiated, caused or brought by defendants.
20. Upon information and belief the criminal case is still pending against plaintiff Edward Eberhart but that all charges eventually will be dismissed against him.

**AS AND FOR A FIRST CAUSE OF ACTION
AGAINST ALL DEFENDANTS
FALSE ARREST**

21. Plaintiff Edward Eberhart repeats, reiterates, and re-alleges each and every allegation set forth in paragraphs "1" through "20" of this Complaint, with the same force and effect as if more fully set forth herein.
22. At the above time and place, plaintiff, Edward Eberhart, was illegally arrested, stopped and detained by defendants, through the actions of its agents, employees and officer(s), named and those as yet unknown (all within the scope of their employment), in violation of her rights under the New York State Constitution

and New York State Law.

23. At the above time and place, plaintiff, Edward Eberhart, was consciously aware of his physical arrest, did not consent to it, and was otherwise harmed by it.

24. That such physical arrest was unlawful as it was without warrant, without probable cause, and without other legal privilege or justification.

25. Plaintiff, Edward Eberhart, was illegally seized and detained for a period of time by the aforementioned defendants. These actions of said defendants constituted false arrest as to plaintiff, Edward Eberhart.

26. As a consequence of said defendants' actions, plaintiff, Edward Eberhart was deprived of her freedom for a period of time, suffered injuries, and was subjected to great fear and terror and personal humiliation and degradation, and has continued to suffer mental and emotional distress.

27. The defendants involved in such false arrest knew or had reason to know, upon information and belief, that such arrest was false, and had a realistic opportunity, upon information and belief, to intervene to prevent such false arrest from occurring.

28. By reason of the foregoing, plaintiff, Edward Eberhart, has been injured and damaged in a sum in excess of the jurisdictional threshold of this Court.

**AS AND FOR A SECOND CAUSE OF ACTION
AGAINST ALL DEFENDANTS
ASSAULT & BATTERY**

29. Plaintiff Edward Eberhart repeats, reiterates, and re-alleges each and every allegation set forth in paragraphs "1" through "28" of this Complaint, with the same force and effect as if more fully set forth herein.

30. At the above time and place, plaintiff, Edward Eberhart, was without his consent, illegally and without justification in law, subjected to a strip search(s) by the defendants and through the actions of its agents, employees and officer(s), named and those as yet unknown (all within the scope of their employment), in violation of his rights under the New York State Constitution and New York State Law.

31. By reason of the foregoing, plaintiff, Edward Eberhart, has been injured and damaged in a sum in excess of the jurisdictional threshold of this Court.

**AS AND FOR A THIRD CAUSE OF ACTION
AGAINST ALL DEFENDANTS
MALICIOUS PROSECUTION**

32. Plaintiff, Edward Eberhart, repeats, reiterates, and re-alleges each and every allegation set forth in paragraphs "1" through "31" of this Complaint, with the same force and effect as if more fully set forth herein.

33. Defendants maliciously and without reasonable or probable cause, caused

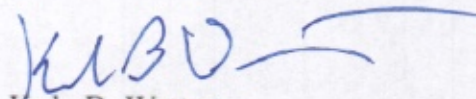
plaintiff Edward Eberhart to be charged with various crimes and to be prosecuted by the New York County District Attorney's Office.

34. As a result of the foregoing, plaintiff Edward Eberhart has been injured in his good name and reputation, has been subjected to great indignity and humiliation, pain and distress of mind and body, and has been prevented from attending to his usual business.

35. By reason of the foregoing, plaintiff Edward Eberhart has been injured and damaged in a sum in excess of the jurisdictional threshold of this Court.

WHEREFORE, the plaintiff Edward Eberhart demands judgment against the defendants on the First Cause of Action in a sum in excess of the jurisdictional threshold of this Court, and on the Second Cause of Action, in a sum in excess of the jurisdictional threshold of this Court, and on the Third Cause of Action, in a sum in excess of the jurisdictional threshold of this Court, and demands such other further and different relief which the Court deems just and proper.

Dated: New York, New York
September 9, 2017


Kyle B. Watters
Kyle B. Watters, P.C.
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Bayside, New York 11361
(212) 679-8999
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Attorney for Plaintiff

VERIFICATION

STATE OF NEW YORK

COUNTY OF

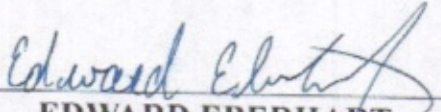
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ss.:

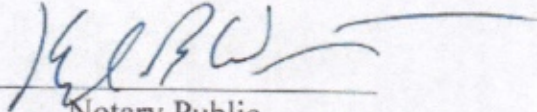
EDWARD EBERHART, being duly sworn deposes and says:

I am the plaintiff herein.

I have read the foregoing complaint and know the contents thereof and the same is true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, as to those matters, I believe them to be true.


EDWARD EBERHART

Sworn to before me on this
9th day of September, 2017


Notary Public

KYLE B. WATTERS
Notary Public State of New York
No. 02WA5031419
Qualified in Queens County
Commission Expires August 1, 2018
2018